

Manoj Kumar Agarwal v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 3 March 2016 · WRIT - C No. 69824 of 2015 · **Writ disposed; consumer relegated to appeal with ₹2 lakh deposit.**

HEADNOTE

A writ challenging a theft-assessment demand of Rs.3,31,957 and seeking a Clause 8.0 committee enquiry was not entertained on disputed facts. The consumer was given 15 days to appeal; the appellate authority was to decide within three months in accordance with law, on deposit of Rs.2 lakh, the balance remaining subject to the appeal.

FACTUAL SUMMARY

The Executive Engineer, Electricity Distribution Division-II, Firozabad of Dakshinanchal Vidyut Vitran Nigam Ltd. issued a demand notice dated 21 November 2015 imposing a penalty of Rs.3,31,957 on Manoj Kumar Agarwal after assessing alleged theft of electricity. Agarwal sought certiorari to quash the notice, a mandamus for enquiry by the committee under Clause 8.0 of the U.P. Electricity Supply Code, 2005, and restraint on disconnection and recovery, contending the bill lacked basis and did not comply with the Electricity Act.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.0(5)

assessment-writ-appeal

HOLDING

Disputed questions of fact attending a theft-assessment penalty bar writ interference with the demand notice and with the prayer for a committee enquiry under Clause 8.0 of the U.P. Electricity Supply Code, 2005. The consumer is to file an appeal before the appellate authority within 15 days, depositing Rs.2,00,000, the remaining amount remaining subject to the appeal; the appellate authority shall dispose of the matter in accordance with law within three months of filing. ¶ 1

FLAG order cites Clause 8.0 generally, not 8.0(5)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT-ASSESSMENT PENALTY, CLAUSE 8.0 COMMITTEE ENQUIRY, AND DISCONNECTION OR RECOVERY

Left to the appellate authority because disputed questions of fact were held to preclude writ interference. ¶ 1